

# Slow Wage Growth in South Carolina

The legislative record behind South Carolinians' wage proposals, 2019–2026 — organized by how close each idea has come to becoming law.

## WHAT THIS BRIEF COVERS

South Carolina has no state minimum wage law: the federal floor of \$7.25 an hour applies, and state law keeps cities and counties from setting a higher one. Across the last four two-year sessions (2019–2026), the General Assembly took up 106 wage-and-workforce bills in this set, and 13 became law. The record splits cleanly in two. Bills that would raise pay directly — a state minimum wage, equal-pay rules, paid sick leave — died in their first committee every single time, without a recorded vote anywhere in eight years. Bills that build pathways to better-paying jobs — apprenticeships, workforce scholarships, technical college training — became law again and again, almost always unanimously. When a wage or workforce bill reached a floor vote at all, it lost exactly once in eight years.

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| <b>106</b><br>wage-and-workforce bills,<br>2019–2026 | <b>13</b><br>became law — job training,<br>targeted wage floors, and<br>tax measures | <b>24</b><br>minimum-wage bills filed —<br>none ever received a vote | <b>1 of 4</b><br>citizen proposals already<br>substantially law —<br>apprenticeships and career<br>training |
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## ALSO IN THE STATE BUDGET (PROVISOS)

Some of the state's biggest wage-and-training decisions never appear in a stand-alone bill. They live in provisos — one-year policy rules enacted inside Part IB of the annual budget bill. FY 2026-27 proviso 117.155 (GP: Lead Apprenticeship Agency) makes the technical college system, through Apprenticeship Carolina, the lead agency for all registered apprenticeships in the state — a role that has existed only in the budget, renewed each year since FY 2023-24, never in permanent law. FY 2026-27 proviso 25.4 (TEC: Critical Statewide Workforce Needs) steers technical college money to the fields with the most unmet employer demand, and its neighbors fund a workforce pilot for people with disabilities (25.7) and a manufacturing-careers awareness campaign (25.8). The lottery-funding proviso (3.8) pays for SC WINS workforce scholarships each year — \$17 million in FY 2021-22 and FY 2022-23, a peak of \$93.7 million in FY 2023-24, \$24.7 million this year. The annual state-employee raise is also set here, not in a pay statute: 2.5%, 3%, tiered raises, then 2% in each of the last two budgets (proviso 117.138 this year). One budget year is a gap: FY 2020-21 has no enacted proviso set — the budget bill died in committee during COVID and the state ran on a continuing resolution. Votes on provisos are votes on the whole budget bill, never on one proviso alone.

## CLOSEST TO LAW: BILLS THAT PASSED BOTH CHAMBERS

*One bill in this record passed both houses and still died — and its idea became law anyway.*

### Passed both chambers, then died in conference

**The Employment First Initiative Act — H3244 (2021)** passed the House 106–9 and the Senate 44–0, then died when the two chambers could not reconcile their versions before the year ended. The idea did not: **S533 (Act 209 of 2022)** carried the same Employment First policy into law the next year and went further, banning subminimum pay for workers with disabilities — 43–0 in the Senate, 104–4 in the House. No wage or workforce bill in this record was vetoed.

## PROVEN SUPPORT: CLEARED A CHAMBER OR A COMMITTEE

*Each bill won a floor majority — several unanimous — before stalling in the other chamber.*

**The SC WINS scholarship — H3576 (2019).** Passed the House 105–0 and earned a favorable Senate committee report, then ran out of Senate calendar. The identical idea returned as H3144 and became law two years later (Act 204 of 2022, 105–1 and 40–0).

**The career-pathways overhaul — H3759 and S419 (2019–20).** Each chamber passed its own version — the House 100–3, the Senate 40–4 after a weeks-long floor fight — and each died in the other chamber's committee when COVID ended the 2020 session. The 2023 workforce act later carried much of the idea.

**The apprenticeship hiring credit — H3348 (2022).** Tax credits for employers who hire formerly incarcerated people or veterans into apprenticeship programs; passed the House 106–0 and died in Senate Finance.

**The overtime tax exemption — H3368 (2026).** Exempting overtime pay from state income tax; passed the House 121–0, was reported favorably by Senate Finance, then failed on the Senate floor 16–27 — the only losing floor vote in this record.

**Skills-based hiring — S859 (2024).** Opening state jobs to skills and experience rather than degree requirements; passed the Senate 42–0 and died in House Labor, Commerce and Industry. The 2025 refiles (H3479, S272) died in their first committees. **Workforce readiness — H4060 (2023)** passed the House 108–2 and died in Senate Education. **The workforce-agency restructures — S546 (2023) and S279 (2025)** passed the Senate 42–0 and 41–0 and died in House committees.

## ALREADY LAW — AND THE OPENINGS AROUND IT

*New law settles some ground — and shows where the General Assembly keeps building.*

### New laws, 2022–2026

Thirteen wage-and-workforce laws in this record, all but one enacted between 2022 and 2024. The workforce ladder led: SC WINS scholarships in statute (H3144, Act 204 of 2022, 105–1 and 40–0), the restructured Coordinating Council for Workforce Development (H4766, Act 194 of 2022), the Earn and Learn Act connecting students to registered apprenticeships for credit (H3605, Act 13 of 2023, 114–0 and 39–0), the Statewide Education and Workforce Development Act creating one state workforce office and plan (H3726, Act 67 of 2023, 102–3 and 41–2), the workforce agency's cabinet-restructure act (H3783, Act 1 of 2023), a bigger and longer apprentice tax credit (S557, Act 188 of 2024, 42–0 and 111–0), and the STEM Opportunity Act (H3863, Act 142 of 2026, 103–0 and 43–0) — the 2025–26 session's one law in this set. The wage floors that passed were targeted: the disability subminimum ban (S533, Act 209 of 2022) and a federal-minimum floor for inmates in private prison-industry programs (S1001, Act 192 of 2024, 45–0 and 109–0). The tax code carried the rest: job development credit updates inside the 2022 and 2024 tax packages (S901, Act 237 of 2022, 41–0 and 91–0; H4087, Act 222 of 2024, 45–0 and 84–12), the military-retirement income exemption branded as workforce policy (H3247, Act 156 of 2022, 107–0 and 43–0), and consumer rules for earned-wage-access services (S700, Act 190 of 2024).

### Where lawmakers appear willing to go further

The workforce-pathway lane keeps extending — each law built on the last, from proviso-funded scholarships (2019) to statute (2022) to a statewide office (2023) to a bigger employer credit (2024) — and none of it has ever lost a floor vote. Skills-based hiring has a unanimous Senate vote behind it and three committee deaths; the design keeps returning. The wage-linked incentive machinery (job development credits keyed to pay levels) is updated routinely inside tax packages, which is the venue where the livable-wage credit idea would compete. And the two enacted wage floors show the shape of what passes: narrow, group-specific, near-unanimous.

## LITTLE TRACTION YET: STOPPED EARLY

*Two of the four citizen proposals have reached the General Assembly and stopped in their first committee; one has never been filed at all.*

**Raise the minimum wage.** Twenty-four bills in four sessions, none ever voted on: fixed floors of \$10–\$17 an hour (higher local minimums stay banned), phased three-year schedules with automatic inflation adjustments, the recurring "SC Minimum Wage Act" with agency-set annual updates, advisory ballot questions (S633, 2021; S28, 2023), a constitutional amendment (S147, 2019), and a wage-board mechanism setting minimum pay by occupation (H3735, 2025). They stop in the same rooms every session: House Labor, Commerce and Industry; House Ways and Means; Senate Labor, Commerce and Industry; Senate Judiciary. The same handful of members refile them each time.

**A youth wage or age-bracketed minimum.** Never filed. No bill from 2019–2026 proposes a youth wage, training wage, or any age-based bracket — the terms return zero hits in every bill's full text, verified statewide. The one tiered-wage law the legislature passed moved the other way: S533 removed a subminimum tier rather than creating one.

**Employer incentives for paying a living wage.** The exact design exists as a filed bill: H4603, the Small Business Livable Wage Tax Credit Act (2026) — an income tax credit for small employers paying at or above a livable wage — died in House Ways and Means without a vote when the session ended, as did H4245 (2025), which pairs tax relief for people leaving public assistance with credits for the businesses that hire and retain them. S398 (2021), wage and job

obligations on subsidy recipients with clawbacks, died in Senate Labor, Commerce and Industry. The near-miss: the Redline Enterprise Zone Act (H4252, 2022) passed the House 103–2 and died in Senate Finance.

**The rest of the direct-pay agenda.** Equal-pay bills died in first committee eleven times in four sessions; paid sick leave (H3469, 2021), ban-the-box for state hiring (S549, 2019; S25, 2023), school support staff pay raises (H4140, 2021; H3583, 2025), and the daily-overtime mandate (H4751, 2026) all stopped the same way.

## WHERE THERE IS MOVEMENT — AND WHERE THERE IS NONE

**Moving:** career training and workforce programs (5 of its 22 bills became law — the record's biggest theme, all near-unanimous); apprenticeship and hiring credits (2 of 7, plus two more that passed one chamber unanimously); targeted wage floors (2 of 4 core bills); and wage-linked employer incentives when they ride tax packages (2 packages enacted). **Not moving:** the general minimum wage (0 of 24, no vote ever taken); equal pay (0 of 11, same); worker-benefit mandates (paid sick leave, daily overtime); and stand-alone pay-linked incentive bills, which sit in the money committees without votes.

**Where bills stop, and who sponsors them.** The first committee is this record's great filter — direct-pay bills die there without hearings recorded, and South Carolina publishes committee outcomes but never committee vote tallies, so no count exists for any of these stops. Bills that clear their own chamber die, when they die, in the second chamber's committee late in the session: Senate Education and Senate Finance for House bills, House Labor, Commerce and Industry and House Judiciary for Senate bills. Party labels are deliberately absent throughout this packet — attaching them requires a ballot-roster join that was not fetched — so this brief makes no party claims. The frequent minimum-wage lead sponsors are Rep. Cobb-Hunter, Sen. Scott, Rep. Garvin, and Rep. Hart; Rep. G.M. Smith led three of the enacted laws (Earn and Learn, the workforce act, the 2024 tax package), and Sen. Davis carried the skills-based hiring bills. Floor votes in this set are lopsided: every enacted bill cleared both chambers by wide margins, and the closest vote on any of them was 84–12.

## FEDERAL OVERLAP: WHAT WASHINGTON ALREADY COVERS

*Where federal action already covers ground — and where the state route is the only one.*

The wage floor itself is federal ground first: the Fair Labor Standards Act sets the \$7.25 minimum, the overtime rules the 2025–26 tax-exemption bills worked around, and the \$4.25 youth training wage employers may already pay for a worker's first 90 days — the layer any state youth-wage design would sit on top of. The subminimum-wage certificates for workers with disabilities that S533 banned are a federal program (FLSA Section 14(c)); the state law closed South Carolina to them. Registered apprenticeships are a U.S. Department of Labor program — the state's role, through Apprenticeship Carolina and the budget's lead-agency proviso, is recruiting employers into it, and the state apprentice tax credit (S557) pays employers who do. Federal workforce money flows through the state's system under the federal workforce law's state plan — the machinery H3726 reorganized. What has no federal layer at all is the core of this brief: whether South Carolina adopts a state minimum wage, whether cities may set their own (state law says no), the state tax credits, the technical college system, and SC WINS are state ground alone.

Full bill-by-bill detail, votes, sponsors, budget provisos, and sources: Appendices A–I.

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# Policy Spotlights

A focused, bill-by-bill look at how far each proposal from the Community Conversations has traveled. Each policy is sorted into the same viability groups the brief uses, so the brief's top section shows what is viable overall and these spotlights show how viable one policy may be.

## RAISE THE MINIMUM WAGE / LIVABLE WAGE

*Twenty-four bills in four sessions; none ever received a recorded vote at any stage. The only enacted wage floors are for specific groups.*

### Already law (nearby, not the proposal itself)

- **S533 (Act 209 of 2022):** banned subminimum pay for workers with disabilities and enacted the Employment First Initiative Act; 43–0 and 104–4.
- **S1001 (Act 192 of 2024):** at least the federal minimum wage for inmates working in private prison-industry programs; 45–0 and 109–0.

### Stopped early (died in first committee, no recorded vote)

- **Fixed floors above the federal rate (higher local minimums stay banned):** H3114 (\$10.10, 2019), H3467 (\$13, 2019), H3341 (\$15, 2021), H3480 (\$13, 2021), H5187 (\$10, 2024).
- **Phased three-year floors with automatic inflation adjustments:** H3217 (\$10.10, 2019), H3395 (\$12, 2019), H3018 (\$10.10, 2021), H3184 (\$15, 2021), H3226 (\$10.10, 2025).
- **\$17 flat floor, refiled every session:** H4154 (2019), H3675 (2021), H3805 (2023), H3809 (2025).
- **"SC Minimum Wage Act" (agency-adjusted for inflation each year):** S149 (2019), S159, S343, and S634 (2021), S216 and S291 (2023).
- **Other routes:** S147 (2019, constitutional amendment), S633 (2021) and S28 (2023, advisory ballot questions), H3735 (2025, wage boards setting minimum pay by occupation).

### Never filed

- A bill simply lifting the ban on local minimum wages: none of the 24 bills took that route — each set a statewide floor, and the fixed-floor bills restated that local governments may not exceed it.

## AGE-BRACKETED MINIMUM WAGE WITH A YOUTH WAGE

*The one proposal with no legislative history at all.*

### Never filed

- No bill from 2019–2026 proposes a youth wage, a training wage, or any age-based wage bracket; the terms return zero hits in every bill's full text (verified statewide by the completeness gate).
- Context: federal law already allows a \$4.25 youth training wage for a worker's first 90 days, and South Carolina has no state minimum to bracket.
- **S533 (Act 209 of 2022):** the nearest enacted law, and it runs the other way — it removed a subminimum tier rather than creating one.

## APPRENTICESHIPS, CAREER PATHWAYS, AND TECHNICAL TRAINING

*The record's most successful lane: six of the eight core laws, none of which lost a floor vote.*

### Already law

- **H3144 (Act 204 of 2022):** SC WINS scholarships for technical college students in high-demand fields; 105–1 and 40–0. Funded by lottery provisos at \$17M–\$93.7M a year.
- **H4766 (Act 194 of 2022):** restructured the Coordinating Council for Workforce Development; 104–1 and 40–0.
- **H3605 (Act 13 of 2023):** the Earn and Learn Act — registered apprenticeships and work-based learning for credit; 114–0 and 39–0.
- **H3726 (Act 67 of 2023):** the Statewide Education and Workforce Development Act — one state office and plan; 102–3 and 41–2.

- **S557 (Act 188 of 2024)**: raised the apprentice tax credit and let employers claim it longer; 42–0 and 111–0.
- **H3863 (Act 142 of 2026)**: the STEM Opportunity Act; 103–0 and 43–0.

### Proven support (passed one chamber, died in the other's committee)

- **H3576 (2019)**: SC WINS 1.0; House 105–0, favorable Senate committee report, ran out of Senate calendar.
- **H3759 / S419 (2019–20)**: the career-pathways overhaul; House 100–3 and Senate 40–4 respectively, both stopped when COVID ended the session.
- **H3348 (2022)**: tax credits for hiring formerly incarcerated people or veterans into apprenticeships; House 106–0, died in Senate Finance.
- **H4060 (2023)**: education and workforce readiness; House 108–2, died in Senate Education.
- **S859 (2024)**: skills-based hiring for state jobs; Senate 42–0, died in House Labor, Commerce and Industry.
- **S546 (2023) / S279 (2025)**: Department of Employment and Workforce restructuring; Senate 42–0 and 41–0, died in House committees.

### Stopped early

- Workforce Education Act (H4022, 2019), workforce diploma program (S650, 2019), education-to-job data oversight (H3757, 2019; H3611, 2021; S461, 2023), workforce readiness (H3197, 2025 — reported out, no floor vote), Dual Enrollment Opportunity Act (H4984, 2026), Service Year Act (H3225, 2025), skills-based hiring refiles (H3479, S272, 2025), apprenticeship-credit tightening (H4600, 2024).

## INCENTIVES FOR EMPLOYERS PAYING A LIVING WAGE

*The exact design exists as a filed bill without a vote; the adjacent wage-linked machinery passes inside tax packages.*

### Already law (adjacent machinery)

- **S901 (Act 237 of 2022) and H4087 (Act 222 of 2024)**: updated job development credits — the state's existing wage-linked hiring incentive — inside broader tax packages; 41–0/91–0 and 45–0/84–12.
- **S557 (Act 188 of 2024)**: the bigger apprentice hiring credit.

### Proven support

- **H4252 (2022)**: the Redline Enterprise Zone Act — targeted hiring and investment incentives; House 103–2, died in Senate Finance.

### Stopped early

- **H4603 (2026)**: the Small Business Livable Wage Tax Credit Act — an income tax credit for small employers paying at or above a livable wage; died in House Ways and Means without a vote.
- **H4245 (2025)**: tax relief for people leaving public assistance plus credits for businesses that hire and retain them; same committee, same result.
- **S398 (2021)**: job, wage, and health-care obligations on subsidy recipients, with clawbacks; died in Senate Labor, Commerce and Industry.
- **H3774 / S489 (2021)**: Enterprise Zone Act credits for professional employer organizations; died in the money committees.
- **H5471 / S1118 (2026)**: a Headquarters Relocation and Growth Fund granting money to businesses that move or expand headquarters here; died in the money committees.
- **H4174 (2025)**: job development credit changes; died in House Ways and Means.

## GLOSSARY

- **Apprenticeship Carolina:** The SC Technical College System division that recruits employers into registered apprenticeships; the budget names it the state's lead apprenticeship agency.
- **Apprentice tax credit:** A state income tax credit for employers with registered apprentices; raised and extended by S557 (Act 188 of 2024).
- **Ban the box:** Barring the state from asking about criminal history until later in hiring; filed twice (S549, S25), never voted on.
- **Dual enrollment:** High-school students taking college or technical courses for credit.
- **Earned wage access:** Services that let workers draw pay they have already earned before payday; consumer rules enacted by S700 (Act 190 of 2024).
- **Employment First:** State policy favoring competitive, integrated employment for people with disabilities; enacted inside S533.
- **Federal minimum wage / FLSA:** The \$7.25-an-hour federal floor under the Fair Labor Standards Act — the wage law that actually binds in South Carolina, which has no state minimum. The FLSA also allows a \$4.25 youth training wage for a worker's first 90 days.
- **Job development credits:** The state's existing wage-linked hiring incentive — approved companies keep part of employee withholding, with the amount keyed to wage levels.
- **Livable (living) wage:** Pay high enough to cover basic living costs; H4603 would define it for a small-business tax credit.
- **Local preemption:** State law bars cities and counties from setting their own minimum wage; the filed minimum-wage bills kept that ban while setting a statewide floor.
- **Proviso / Part IB:** A one-year policy rule enacted inside the annual state budget bill; Part IB is the budget section that carries them. Votes attach to the whole budget bill, never one proviso.
- **Registered apprenticeship:** An apprenticeship registered with the U.S. Department of Labor — paid work plus structured training.
- **SC WINS:** The South Carolina Workforce Industry Needs Scholarship for technical college students in high-demand fields; created in statute by H3144, funded each year by lottery provisos (\$17M–\$93.7M).
- **Skills-based hiring:** Filling state jobs based on skills and experience rather than degree requirements; passed the Senate 42–0 in 2024, not yet law.
- **Subminimum wage:** Pay below the minimum wage under a federal certificate, historically allowed for workers with disabilities; banned in South Carolina by S533 (Act 209 of 2022).
- **Technical college system:** The state's 16 two-year colleges, governed by the State Board for Technical and Comprehensive Education (TEC in proviso citations).
- **Wage board:** A panel that sets minimum pay rates occupation by occupation; proposed by H3735 (2025), which died in its first committee.
- **Workforce development / DEW:** Programs moving people into better-paying jobs; the Department of Employment and Workforce runs unemployment insurance and workforce services, and H3726 created a statewide workforce-development office and plan.

## LEGISLATIVE PROCESS GLOSSARY

- **H / S bill numbers:** The chamber a bill started in (House or Senate) plus its number. Numbering restarts every two-year General Assembly, so the same number in different sessions is a different bill.
- **General Assembly / session:** The legislature elected for two years — the 123rd (2019–2020) through the 126th (2025–2026) appear in this brief. It meets each January; a bill filed in the first year stays alive into the second, and everything unpassed dies when the second year ends.
- **Chambers:** The 124-member House of Representatives and the 46-member Senate; a bill must pass both to reach the Governor. Vote totals below those figures reflect absences.
- **Prefiled:** Filed in the weeks before the January session begins.
- **First committee:** The committee a bill is sent to after introduction. Most bills that fail die there, with no further action recorded — in this record, every minimum-wage and equal-pay bill did.
- **Committee report:** The committee's published outcome — "Favorable" or "Favorable with amendment." South Carolina publishes these outcomes but never committee vote tallies, so no committee vote counts exist anywhere in these documents.
- **Readings:** A bill passes a chamber through three readings; the recorded roll calls in these documents attach to second or third reading, or to "Passage of Bill."
- **Roll call / vote pairs (e.g. 105–1 and 40–0):** Yes–no floor tallies, one per chamber — the first number in a pair is usually the House, the second the Senate.
- **Second chamber:** After passing its own chamber, a bill repeats the whole process — committee, then floor — in the other one. In this record, that second committee stop is where most advanced bills died: the skills-based hiring, workforce-readiness, and hiring-credit bills all ended there.
- **Conference committee:** Negotiators from both chambers who reconcile differing versions; a bill dies there if the session ends first — the fate of the Employment First bill (H3244, 2021) a year before its content passed as S533.
- **Ratified / R number:** After both chambers pass identical text, the bill is ratified and numbered (R185) before going to the Governor.
- **Act number:** A signed bill becomes a numbered act of its year — "Act 188 of 2024" — the citation these documents use for enacted bills.
- **Veto / override:** The Governor can reject a passed bill; the General Assembly can override with a two-thirds vote in each chamber. No bill in this record was vetoed.
- **Advisory referendum:** A ballot question asking voters' opinion without changing law by itself; two minimum-wage versions were filed and died in committee.
- **Joint resolution:** A measure with the force of law used for single actions — including constitutional amendments and the minimum-wage ballot questions in this record.
- **Budget proviso (Part IB):** South Carolina's counterpart to other states' budget riders: one-year policy rules enacted inside the annual appropriations act, where the apprenticeship lead-agency role, WINS funding, and state-employee raises in this brief live. Votes are on the whole budget bill, never on one proviso.
- **Sponsor / lead sponsor:** The lawmakers who formally introduce a bill; the first member on the official sponsor line is its lead. Party labels appear nowhere in these documents because the roster join was deliberately not fetched.
- **"Died at the session's end":** The bill cleared every vote it faced but ran out of calendar — a timing stop, not a recorded "no."